

[23 & 24 GEO. 5.] *Victoria Infirmary of* [Ch. xv.]
Glasgow Act 1888 (Amendment) Order Confirmation
Act, 1933.



CHAPTER xv.

An Act to confirm a Provisional Order under A.D. 1933.
the Private Legislation Procedure (Scotland)
Act 1899 relating to the Victoria Infirmary
of Glasgow. [28th June 1933.]

WHEREAS the Provisional Order set forth in the
schedule hereunto annexed has been made by one
of His Majesty's Principal Secretaries of State under
the provisions of the Private Legislation Procedure
(Scotland) Act 1899 as read with the Secretaries of
State Act 1926 and it is requisite that the said Order
should be confirmed by Parliament :

62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent
Majesty by and with the advice and consent of the
Lords Spiritual and Temporal and Commons in this
present Parliament assembled and by the authority of
the same as follows :—

1. The Provisional Order contained in the schedule
hereunto annexed is hereby confirmed.

Confirmation
of Order in
schedule.

2. This Act may be cited as the Victoria Infirmary
of Glasgow Act 1888 (Amendment) Order Confirmation
Act 1933.

Short title.

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SCHEDULE.

VICTORIA INFIRMARY OF GLASGOW.

Provisional Order to confer further powers on the Governors of the Victoria Infirmary of Glasgow to amend the provisions of the Victoria Infirmary of Glasgow Act 1888 and for other purposes.

WHEREAS the Victoria Infirmary of Glasgow Act 1888 (hereinafter referred to as "the Act of 1888") was passed to provide for the establishment of an infirmary to be called the Victoria Infirmary of Glasgow :

And whereas by section 3 of the Act of 1888 it is provided inter alia that the Institution referred to in the preamble of that Act as the Victoria Infirmary and thereafter in that Act and hereinafter referred to as "the Institution" is intended to comprise besides the erection of the infirmary itself all or some of the following objects viz. inter alia "To provide in the said infirmary
" additional accommodation for the relief of the sick
" and injured poor in the city of Glasgow and surrounding
" districts where they will receive the advantages of
" lodging attendance diet medicine and medical and
" surgical advice and assistance and where likewise
" medical and surgical patients who may from want of
" proper accommodation in their homes or otherwise
" wish to reside in the infirmary and to pay according
" to their means may receive lodging attendance diet
" medicine advice and assistance in consideration of
" such payment (provided that at no time shall more
" than one-sixth part of the accommodation for the
" time being in the said infirmary be occupied by such
" last-mentioned patients) " :

And whereas the Governors of the Victoria Infirmary of Glasgow (hereinafter called "the Governors") have been approached by various associations whose members may desire treatment in the Institution and would be willing to pay according to their means and by other persons in the like position :

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And whereas it has been recommended by a joint committee of the British Hospitals Association and the British Medical Association that provision should be made in all suitable hospitals of a sufficient number of rooms or wards for paying patients coupled with the application of a maximum means test for entry into the general wards : A.D. 1933.

And whereas it is expedient and would be for the benefit of all classes of the community were all doubt removed as to the powers of the Governors in this respect and that section 3 of the Act of 1888 should be repealed and re-enacted with the amendments in this Order set forth :

And whereas section 5 of the Act of 1888 as modified by section 2 of the Victoria Infirmary of Glasgow Act 1888 (Amendment) Order 1919 (hereinafter referred to as "the Order of 1919") so far as part thereof deals with "Workmen's Governors" reads as follows :—
" Six
" persons (hereinafter called ' Workmen's Governors ') to
" be elected annually by those members of the court of
" contributors hereinafter constituted who are the duly
" authorised representatives of the workmen of every
" shipyard factory or workshop who have paid or shall
" pay in the aggregate towards the funds of the Institution
" a donation of fifty pounds or upwards or an annual
" subscription of five pounds or upwards such election
" to take place in terms of such rules and regulations
" thereanent as may from time to time be framed and
" enacted by the executive committee or (after that
" committee ceases to act as aforesaid) by the
" Governors " :

And whereas section 7 of the Act of 1888 as modified by section 3 of the Victoria Infirmary of Glasgow Act 1888 (Amendment) Order 1925 (hereinafter referred to as "the Order of 1925") reads as follows :—
" The
" court of contributors shall consist of all persons
" (including private companies) who have each paid or
" who shall each pay towards the funds of the Institution
" a donation of ten pounds or upwards or an annual
" subscription of one pound or upwards of the chairman
" preses or other head or duly authorised representative
" of every corporation church congregation society
" association public company or other body which has
" paid or shall pay towards the said funds a donation of

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A.D. 1933. — “ fifty pounds or upwards or an annual subscription of
 “ five pounds or upwards and of one duly authorised
 “ representative of the workmen in every shipyard
 “ factory or workshop who have paid or shall pay in the
 “ aggregate towards the said funds a donation of fifty
 “ pounds or upwards or an annual subscription of five
 “ pounds or upwards provided that such annual sub-
 “ scription shall only entitle the person or the repre-
 “ sentative of the body or of the workmen subscribing
 “ to be a member of the said court for the financial year
 “ (ending on the thirty-first day of December) or years
 “ in which it is paid ” :

And whereas section 12 of the Act of 1888 reads as follows :—“ The corporations and bodies (other than the
 “ court of contributors) and the representatives of work-
 “ men who are hereinbefore authorised to elect Governors
 “ shall make such respective elections and intimate the
 “ same to the executive committee or to the Governors as
 “ the case may be previously to the days hereinbefore
 “ appointed for the first and subsequent ordinary
 “ meetings of the said court ” :

And whereas doubts have arisen as to the proper interpretation and working out of these provisions contained in the said section 5 so far as part thereof deals with “ Workmen’s Governors ” and sections 7 and 12 of the Act of 1888 as modified as above mentioned and it is expedient that the matters therein referred to should be made clear and workable :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

Title and
 commence-
 ment of
 Order.

1.—(1) This Order may be cited for all purposes as the Victoria Infirmary of Glasgow Act 1888 (Amendment) Order 1933 and shall commence to have effect on and from the date of the passing of the Act confirming the same.

(2) The Act of 1888 the Order of 1919 the Order of 1925 and this Order may be cited together as the Victoria Infirmary of Glasgow Acts 1888 to 1933.

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2. Section 3 (Objects of Institution) of the Act of 1888 and section 2 (Amendment of section 3 of the Act of 1888) of the Order of 1925 are hereby repealed and the following provisions shall have effect in lieu thereof :—

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—
 Repeal and
 re-enact-
 ment of
 section 3 of
 the Act of
 1888 as
 amended by
 section 2 of
 the Order of
 1925.

The Institution is intended to comprise besides the erection of the infirmary itself all or some of the following objects (that is to say) :—

(a) to treat in the infirmary its annexes its auxiliaries and its homes and any additional buildings which the Governors may from time to time erect (together hereinafter in this section referred to as “the infirmary”) the sick and injured poor from the city of Glasgow and elsewhere providing them with lodging attendance diet medicine and medical and surgical advice and assistance;

(b) to treat in the infirmary sick and injured persons from the city of Glasgow and elsewhere whatever may be their means who are willing to pay such charges as may from time to time be fixed by the Governors providing them with lodging attendance diet medicine and medical and surgical advice and assistance provided that at no time shall more than one-fifth part of the accommodation for the time being in the infirmary be occupied by paying patients;

(c) to erect equip and carry on the infirmary for all or any of the said purposes;

(d) to provide in the infirmary means of clinical instruction for medical and surgical practitioners and students educated or in course of being educated at the University of Glasgow or other medical schools;

(e) to afford facilities by the use of lecture rooms and other accommodation to teachers for instructing students in medicine surgery and the collateral sciences usually comprehended in a medical education;

(f) to provide district receiving houses and dispensaries on the southern side of Glasgow

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where sick or injured persons may be temporarily attended to until their removal to the infirmary;

(g) to provide as soon as sufficient funds are available a convalescent home in connection with and conveniently situated with respect to the infirmary; and

(h) to purchase subjects on the southern side of Glasgow within a radius of twenty miles from the infirmary itself though the said subjects be outside the parish of Cathcart and to erect equip and carry on thereon an auxiliary or additional infirmary or infirmaries with all the powers which the Governors have in connection with the infirmary itself.

Amendment
of section 5
of the Act
of 1888 as
modified by
section 2 of
the Order of
1919.

3. The paragraph of section 5 (Constitution and incorporation of Governors) of the Act of 1888 relating to "Workmen's Governors" as modified by section 2 of the Order of 1919 is hereby repealed and there shall be substituted therefor the following paragraph:—

"Six persons (hereinafter called 'Workmen's Governors') to be elected annually by those members of the court of contributors hereinafter constituted who are the duly authorised representatives of the workmen of every shipyard factory or workshop who have paid or shall hereafter pay at any time during the ten years preceding the first day of January of the year of election in the aggregate towards the funds of the Institution a donation of fifty pounds or upwards or at any time during the year preceding the first day of January of the year of election an annual subscription of five pounds or upwards such election to take place in terms of such rules and regulations thereanent as may from time to time be framed and enacted by the Governors."

Amendment
of section 7
of the Act
of 1888 as
modified by
section 3 of
the Order of
1925.

4. Section 7 (Constitution of court of contributors) of the Act of 1888 as modified by section 3 of the Order of 1925 is hereby repealed and there shall be substituted therefor the following section:—

"The court of contributors shall from time to time consist of all persons who have each

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paid or who shall hereafter each pay at any time prior to any first day of January towards the funds of the Institution a donation of ten pounds or upwards or during the year preceding any first day of January an annual subscription of one pound or upwards of the chairman preses or other head or duly authorised representative of every corporation church congregation society association public or private (including partnerships) company or other body which has paid or shall hereafter pay at any time during the ten years preceding any first day of January towards the said funds a donation of fifty pounds or upwards or during the year preceding any first day of January an annual subscription of five pounds or upwards and of one duly authorised representative of the workmen in every shipyard factory or workshop who have paid or shall hereafter pay at any time during the ten years preceding any first day of January in the aggregate towards the said funds a donation of fifty pounds or upwards or during the year preceding any first day of January an annual subscription of five pounds or upwards provided that such donation shall entitle the representative of the body or of the workmen donating as the case may be to be a member of the said court for ten years only succeeding the first day of January after the donation has been made and provided that such annual subscription shall entitle the person or the representative of the body or of the workmen subscribing as the case may be to be a member of the said court for one year only succeeding the first day of January after the subscription has been paid.”

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5. Section 12 (Election of Governors by other bodies than the court of contributors) of the Act of 1888 is hereby repealed and there shall be substituted therefor the following section :—

Amendment
of section 12
of the Act
of 1888.

“The corporations and bodies (other than the court of contributors) and the representatives of workmen who are hereinbefore authorised to elect Governors shall make such respective

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—

elections and immediately intimate the same to the Governors and the Governors so elected shall be Governors for the year succeeding the next annual meeting of the court of contributors.”

Costs of
Order.

6. The costs charges and expenses of and incidental to the preparing for obtaining and confirming the Order or otherwise in relation thereto shall be paid by the Governors out of the funds under their charge.

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